

IN THE COURT OF COMMON PLEAS
KNOX COUNTY, OHIO

STATE OF OHIO, ex rel. DAVE YOST,	:	Case No. 20IN06-0149
Plaintiff	:	Judge Richard D. Wetzel
-VS-	:	
THE LANDINGS PROPERTY	:	
ASSOCIATION, INC., ET AL.	:	
Defendants.	:	

MOTION OF RECEIVER FOR APPROVAL OF DAM REPAIR PLAN

Now comes Jack Harris of Intercept Management Corp., the court-appointed receiver for the Defendant The Landings Property Owners Association, Inc. (“Receiver”), by and through counsel, and herein presents the proposed plan for repair of the Knox Cattle Company dam structure for the Court’s consideration and approval. The Receiver incorporates the attached Memorandum In Support as well as a summary of option and project produced by AK Hydro, and presented on August 20, 2025 as Exhibit “A”

Respectfully submitted,

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MEMORANDUM IN SUPPORT

Upon due consideration of the state of Knox Cattle Company dam (herein "Dam"), and proposed remedies, this Court's Receiver now seeks this Court's Order approving the plan for dam repair and authorizing the Receiver to commence with work as quickly as practicable. Specifically, the Receiver recommends that the Court approve and authorize the Receiver to proceed forward with the "two-pond" construction plan ("Two-Pond Plan") referenced in prior court filings.

A. Options Presented.

After being appointed by the Court, in part, to ensure that needed repairs were done to the Dam, the Receiver began consulting with the parties, engineers, construction companies, and other sources, to gather exactly what needed to be done to correct the existing deficiencies and ensure the effectiveness of the Dam into the future. Those consultations yielded three distinct options for repair:

1. **Dam Reconstruction.**

The first option is a full reconstruction of the existing Dam in multiple phases such that its configuration would be modified to meet current dam safety regulations ("Dam Reconstruction"). This option would ensure sufficient flood safety protection and meet the stormwater requirements of the City of Mount Vernon.

If this option were pursued and completed the Dam would remain of a character that would be subject to regulation and enforcement of the Ohio Department of Natural Resources ("ODNR") as a "Class I" dam. The failure or inability of the property owners association and residents to abide by such regulations and execute the necessary repairs previously is a principal reason for this litigation. Being subject to, and complying with those regulations, comes with additional expense when compared to the latter two options which would not be subject to ODNR oversight.

Additionally, Dam Reconstruction would have the highest construction costs and the highest long-term maintenance costs to ensure compliance and viability. The total costs for the Dam Reconstruction would be expected to be nearly \$2 Million. While the City originally encumbered \$1,000,000.00 toward the Dam project, the balance of the funds needed for construction would have to be borrowed. In order for the Receiver to be able to acquire such financing through government agencies, it would be imperative that the Receiver could demonstrate to the lender that the property association was fully functioning and collecting dues which would be sufficient to not only meet with the debt service payments going forward, but also the ongoing maintenance costs. Currently, that is not the case.

Additionally, in one year of administration, the Receiver has not seen or received any support from the affected community for the Dam Reconstruction option.

2. Single-Pond Construction.

The second alternative produced by the Receiver's engineer AK Hydro involves reduction of the water storage capacity at top of dam to 15 acre-feet which exempts the dam from ODNR's jurisdiction. This alternative would employ a single pool with reconstructed spillways, and a lowered dam height along with lower pool levels ("Single-Pond Plan").

The Single-Pond Plan would reduce peak discharges, pool depth and surface area. Its construction costs are the lowest among the three alternatives, with an estimated price of approximately \$350,000.00.

However, with the lessened pond surface area and reconfiguration, much of the surrounding area would become very damp and subject to standing water. These conditions are expected to result in maintenance costs which are significantly higher than the Two-Pond Plan referenced hereinafter. In addition to the maintenance costs involved in the Two-Pond Plan,

maintenance for this option would include, but not be limited to, difficult mowing in marshy areas, vegetation control, sediment management, and likely fumigation to inhibit insect proliferation. Based on the Receiver's research, vegetation control would add approximately \$3,000.00 annually to costs. Additionally, the Receiver got one quote from landscaper for the mowing (without trimming) at \$250.00 per mow. Another group was not interested due to the difficulty with mowers getting stuck in similar situations.

While the total cost of Single-Pond Plan would be less than the remaining encumbered ARPA funds, these monies almost certainly could not be used to pay the maintenance costs going forward. Those funds were encumbered for construction purposes and not maintenance, thus it is doubtful the City of Mt. Vernon would be able to release them for that purpose. Moreover, all ARPA funds must be paid out by the end of 2026 or returned to the federal government. Thus, even if the overage could be used for maintenance costs, it would only be available for the costs incurred in 2026.

Based on discussions with the City of Mount Vernon after the August 20, 2025 meeting, the facility is required to meet current stormwater regulations and provide one foot of freeboard during the 100-year storm. To address this issue, AK Hydro developed a revised conceptual alternative to meet the City of Mount Vernon's stormwater regulations and provided the conceptual layout and associated stormwater calculations to the City for review. This alternative requires the pool levels to be lowered approximately 3 feet compared to the alternative presented during the August meeting, which would result in a normal pool depth of less than 2 feet. As directed to expedite the permitting process, AK Hydro developed construction documents (drawings, specifications, and design report) for the Two-Pond Plan that would be submitted to ODNR Dam Safety for review. AK Hydro estimates additional engineering fees of \$12,000.00 to

modify the construction documents developed for the Two-Pond Plan for the Single-Pond Plan configuration. Of course, construction could not begin until the construction documents were revised and approved by the City and ODNR Dam Safety.

3. Two-Pond Construction.

The third alternative is the Two-Pond Plan. This proposal would make the structure exempt from ODNR jurisdiction by lowering the dam height such that dam storage would be less than 15 acre-feet. It would involve the construction of two ponds separated by an earthen causeway. It also calls for new concrete riser, conduit and emergency spillway, and offers the largest reduction in peak discharges (and, correspondingly, the least risk of downstream flooding) compared to the other alternatives.

The cost for construction of the Two-Pond Plan would be significantly less than Dam Reconstruction, but more than the Single-Pond Plan. In September, it appeared as though the construction costs for this option had risen beyond the amount of the available ARPA funds which would necessitate borrowing of up to \$200,000.00 that would have to be passed along to some configuration of the homeowners in the form of an assessment.

However, in the last month, the Receiver has located an opportunity to dispose of sediment at a local landfill which will lower cost and has further negotiated a reduction of construction costs. The estimate for construction costs is now approximately \$635,200.00 – a shortfall of \$700.00 based on funds awarded and encumbered. This does not include any potential over-runs. Any cost over-runs would be financed by loan and ultimately repaid by the responsible parties. The Receiver has presented the matter to a local lender who is interested in the project and is also exploring obtaining a loan backed by the Ohio Water Development Authority to potentially lower interest costs.

Finally, the costs for ongoing maintenance are expected to be less than either of the aforementioned options. Mowing costs and vegetation control would be greatly reduced compared to the Single-Pond Plan since this option would not require mowing within the former reservoir footprint. As presented at the August public forum on the Dam Repair, the Receiver estimates that those maintenance costs would be about \$14-19 per month if passed along to all lot owners at The Landings.

B. Receiver's Recommendation.

After studying the proposals carefully and considering the thoughts, priorities and questions of the community residents, the Receiver believes that implementing the Two-Pond Plan is in the best interests of all interested parties. The two foremost priorities in evaluating the options have been the safety of the communities and the cost and financial burden imposed upon them. Balancing those priorities, the Two-Pond Plan not only exceeds local stormwater management requirements but makes the best and fullest use of the encumbered and available ARPA funds without need to burden property owners with appreciable assessments to cover debt service. While the costs associated with maintenance moving forward (and accumulating a fund for future repairs) will still need to be paid outside of ARPA funds, the Two-Pond Plan offers the lowest maintenance costs of the three options.

Finally, the Receiver notes that it is likely that if construction is started in the next month that substantial work on the project can be completed by year's end, with final completion in early Spring 2026 when grasses could be established on-site.

C. **Conclusion.**

Based upon the foregoing, the Receiver moves the Court to adopt and approve the Two-Pond Plan to remediate damages to the existing dam and authorize the Receiver to commence the construction project as soon as practicable.

Respectfully submitted,

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CERTIFICATE OF SERVICE

The undersigned hereby certifies that on October 27, 2025, a copy of the foregoing *Motion of Receiver for Approval of Dam Repair Plan* was submitted to the Court electronically and served upon the following:

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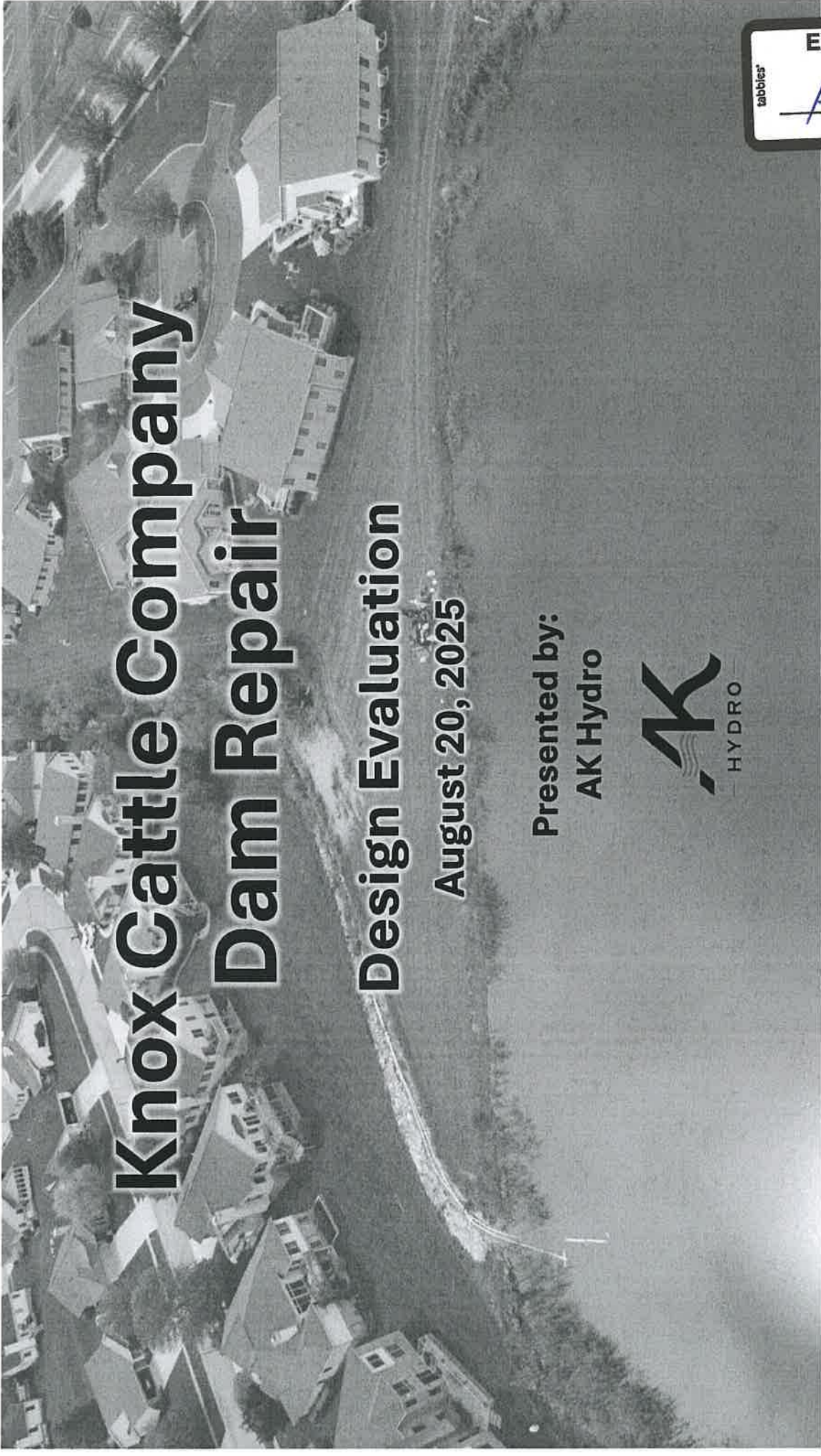
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Knox Cattle Company Dam Repair

Design Evaluation

August 20, 2025

Presented by:
AK Hydro



Introduction

Design Team:



AK Hydro LLC

- Prime Consultant
- Overall Design Lead



DLZ Ohio, Inc.

- Subconsultant
- Geotechnical and Structural Design Lead
- Geotechnical Investigation

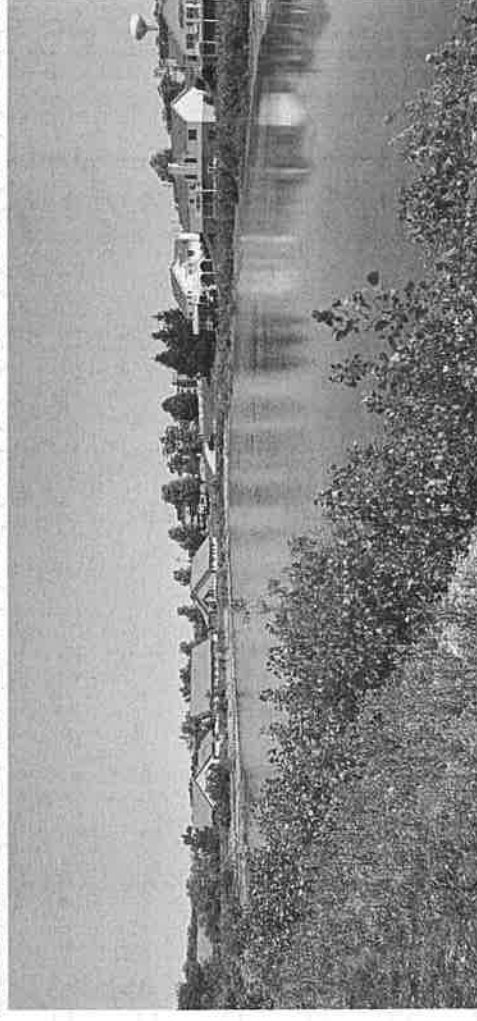


Lawhon and Associate, Inc.

- Subconsultant
- Environmental Permitting Lead
- Sediment Sampling Lead

Project Objectives:

- Evaluate dam structure
- Analyze and evaluate concept designs by previous consultant (3 repairs and 3 phase II options)
- Develop repair alternatives
- Prepare construction documents
- Obtain necessary permits and coordinate with regulators



Alternative 1: Interim Risk Reduction Measures - Phase I



Alternative Objective:

- Replace existing riser and conduit (IRRM)
- Maintain Class I dam structure classification
- Mimic current pool configuration
- Future Phase II (dam safety regulations)

Specifics:

- New concrete riser and conduit
- Reduce normal pool to 1103.5 (freeboard and discharge)
- Maintain emergency spillway weir



Alternative 1: Interim Risk Reduction Measures - Phase I

Pros:

- Similar to original dam configuration
- Largest reservoir surface area
- Reduces peak discharges
- 0.9' freeboard (100-Year)

Cons:

- Phase II improvements required to address dam safety concerns
 - Overtopping protection system
 - Major modification
- Highest construction costs (with phase II) and long-term maintenance costs
- Comply with regulated structure requires
 - Periodic inspections
 - Emergency Action Plan
 - Operation and Inspection Manual

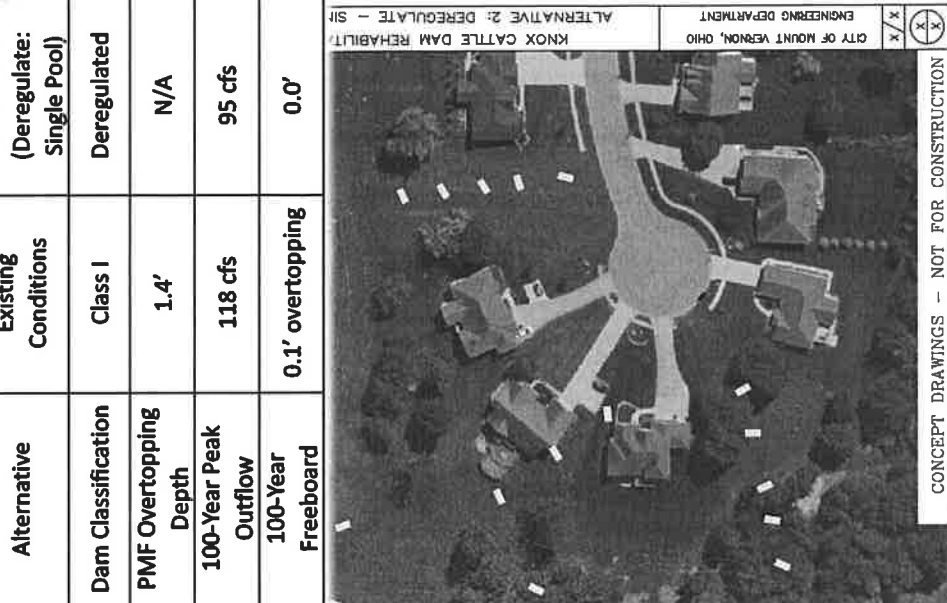


**Alternative 2:
Deregulate:
(Single Pool)**

- | | |
|----------------|--|
| Overregulated: | |
| Single Pool) | |
| Overregulated | |
| N/A | |
| 95 cfs | |
| 0.0' | |

DAM REGUL

- | | |
|----------------------------|-------------------|
| ENGINEERING DEPARTMENT | KNOX CATTLE |
| CITY OF MOUNT VERNON, OHIO | ALTERNATIVE 2: DE |



CONCEPT DRAWINGS - NOT FOR CONSTRUCTION

CITY OF MOUNT VERNON, OHIO
ENGINEERING DEPARTMENT

Alternative 2: Deregulate Dam with Single Pool

Pros:

- Dam exempt from ODNR jurisdiction
- Meets stormwater management requirements
- Reduces peak discharges
- Causeway (if desired) could be constructed during future phase

Cons:

- Smallest pool depth and surface area
- High O&M costs to maintain former lakebed (mowing, vegetation control, etc.)
- No freeboard for 100-year design storm



Alternative 3: Deregulate Dam with Two Pools



Alternative Objective:

- Deregulate dam (less than 15 acre-feet storage)
- Replace existing riser and conduit
- Two pools
- Stormwater controls

Specifics:

- New concrete riser and conduit
- Replace emergency spillway weir
- Lower embankment by 2.2'
- Construct causeway and create two pools
- Lower pool matches current pool depth

Alternative	Existing Conditions	Alternative 3 (Deregulate: Two Pool)
Dam Classification	Class I	Deregulated
PMF Overtopping Depth	1.4'	N/A
100-Year Peak Outflow	118 cfs	72 cfs
100-Year Freeboard	0.1' overtopping	1.3'



CONCEPT DRAWINGS - NOT FOR CONSTRUCTION

KNOX CATTLE DAM REHABILITATION
ALTERNATIVE 3: DEREGULATE - 1

CITY OF MOUNT VERNON, OHIO
ENGINEERING DEPARTMENT

Alternative 3: Deregulate Dam with Two Pools

Pro:

- Dam exempt from ODNR jurisdiction
- Meets stormwater management requirements
- Greatest reduction in 100-year peak discharges
- Greatest freeboard: 1.3' (100-Year)
- Upper and lower pool similar surface area as Alternative 1
- Lowest O&M costs (no mowing or vegetation control within former lakebed)

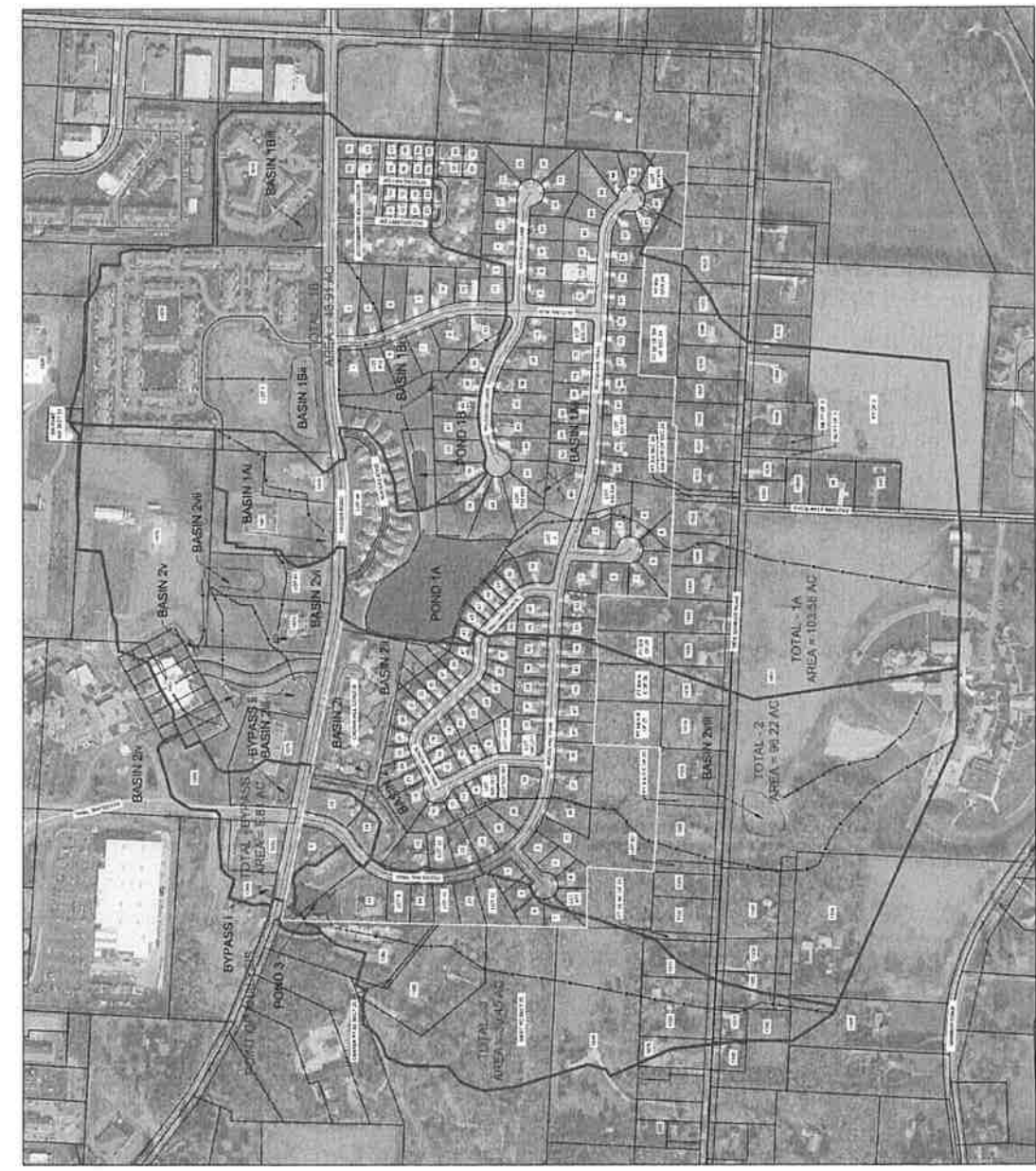
Con:

- Middle cost alternative



Alternatives Evaluation Matrix

Alternative	Dam Safety	Downstream Risk	Stormwater & Flooding	Permitting	Aesthetics/ Environment	Estimated Cost	Long Term O&M
Alternative 1 (IRRM - Phase I)	Dam requires additional modification during future phase to safely convey PMF	Dam remains and potential residual risk downstream remains	Meets stormwater management requirements, reduces peak discharges compared to original configuration, requires future modifications to pass PMF	ODNR Dam Safety Construction Permit for Future Phase, USACE, Ohio EPA	Largest pool surface area and deepest pool, similar to historic configuration	Lowest initial cost alternative but requires future improvements that will cost more than other Alternatives	Highest O&M costs to meet dam safety regulations, requires O&M and EAP
Alternative 2 (Deregulate: Single Pool)	Dam removed from ODNR Jurisdiction	Risk reduced, but embankment still present leading to some residual risk	Meets stormwater management requirements, reduces peak discharges compared to original configuration, no freeboard for 100-year design event	ODNR Dam Safety Permit Not Required, USACE, Ohio EPA, permitting for dam embankment	Smallest pool surface area and shallow pool depth, vegetation expected to be established in portions of former lake bed	Lowest cost Alternative if no causeway is implemented in future phases	High O&M costs to maintain former lakebed. O&M costs to maintain embankment, conduit, and emergency spillway.
Alternative 3 (Deregulate: Two Pool)	Dam removed from ODNR Jurisdiction	Risk reduced, but embankment still present leading to some residual risk	Meets stormwater management requirements, reduces peak discharges compared to original configuration, 1.3' freeboard for 100-year design event	ODNR Dam Safety Permit Not Required, USACE, Ohio EPA, permitting required for causeway and dam	Two pools, with similar surface area to Alternative 1, shallow pool depths, causeway allows foot traffic across pools	Middle cost Alternative	O&M costs to maintain embankment, conduit, emergency spillway, and causeway



LEGEND

- DRAINAGE AREA BOUNDARY
- DEFLECTION LIMIT
- Flow Arrows
- LANDSCAPE SUGGESTION



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DATE: 10/15/2010

BY: J. KLEINGERS

THE LANDINGS AT MOUNT VERNON DRAINAGE STUDY
City of Mount Vernon, OK
Sheet 15 of 18, 2010

1" = 100' SCALE

1" = 100' SCALE

OVERALL DRAINAGE AREA DELINEATION

1" = 100' SCALE

1/2